

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 10, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINE 1	20CV370735	Robert Moles et al vs Carney Construction Consulting, Inc. et al	Motion to Disqualify Counsel Scroll down to Line 1 for Tentative Ruling.
LINE 2	25CV477971	Chadney Duncan- Pauley vs Ford Motor Company et al	Petition to Compel Arbitration Scroll down to Line 2 for Tentative Ruling.
LINE 3	26CV491239	Cassondra Lascola et al vs Mohammed Al- Temimi M.D. et al	Motion to Deem First Amended Complaint Filed Nunc Pro Tunc Scroll down to Line 3 for Tentative Ruling.
LINE 4	26CV497702	Baoxin Ling vs Miro Holdings, LLC dba Topi Cake	Petition For Writ of Mandate VACATED. This case has been designated as a provisional complex matter and is reassigned to Department 66 in front of the Honorable Helen E. Williams for all purposes. The Case Management Conference is set for October 13, 2026 at 1:30 p.m. in Department 66.

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9:01 A.M.			
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9:00 A.M.

Calendar Line # 1

Case Name Robert Moles et al vs Carney Construction Consulting, Inc. et al

Case No. 20CV370735

Motion to Disqualify Counsel

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

This breach of contract claim stems from a Complaint that Plaintiffs Robert Moles and Christopher Douglas Moles, as Trustee of the Mary Denise Moles Revocable Trust, Successor in interest (collectively “Plaintiffs”) filed on September 14, 2020 against Ian Carney (“Carney”), Carney Construction Consulting, Inc. (“Carney Construction”), SJR Ventures, Inc. (“SJR”), Steven Johnson (“Johnson”), and DOES 1 through 20 (collectively “Defendants”).

B. RELEVANT PROCEDURAL BACKGROUND

On October 11, 2022, Defendants SJR and Johnson filed a petition to compel arbitration and stay the action. Parties filed a stipulation to proceed to binding arbitration and stay the action on October 26, 2022.

On June 20, 2024, basic default was entered against Defendant Carney. On April 14, 2026, Plaintiff filed a request for court judgment against Defendants Carney and Carney Construction in the amount of \$5,416,584.78 and the matter was set for a prove up hearing on June 8, 2026 at 1:30 p.m. in front of the Honorable Shella Deen. The prove up hearing was reset to July 20, 2026 at 1:30 p.m. in Department 18.

C. PRESENT MOTION

On May 18, 2026, Defendant Carney filed a motion to disqualify Plaintiff’s Counsel: Ronald R. Rossi, Esq. and the law firm of Rossi, Hamerslough, Reischl & Chuck Counsel and James L. Dawson, Esq. and the law firm of Gates Eisenhart Dawson, counsel for Defendants SJR Ventures, Inc. and Steven Johnson. (Notice of Motion, p. 1-2). The motion was initially set for June 8, 2026 at 1:30 p.m. in Department 18. No minute order reflects this case was continued to this date in Department 1. There is no proof of service attached for this hearing date as required under Code of Civil Procedure 1005(b).

Plaintiff’s counsel filed opposition papers on May 27, 2026 and a limited opposition on September 3, 2026.

Defendant filed Reply briefs on August 20, 2026 and supplemental reply brief September 4, 2026.

The Court has carefully reviewed the Defendant Carney’s notice of motion, memorandum of points and authorities (“MPA”), Declaration of Ian D. Carney in support of the defendant’s moving papers with Exhibits A – I attached (totaling 63 pages); Plaintiff’s May 27, 2026 Opposition (totaling 6 pages); May 27, 2026, Declaration of Missy M. Cornejo in support of the opposition and attached Exhibits A – F (totaling 24 pages); August 20, 2026 Reply brief, Declaration of Carney and attached Exhibits A-B (totaling 27 pages); September 3, 2026 Plaintiff’s Limited Opposition (totaling 9 pages); September 3, 2026 Declaration of Missy M. Cornejo and attached Exhibits A-B (totaling 38 pages); September 4 Reply (totaling 2 pages); proofs of services; and the pleadings.

II. LEGAL STANDARD

A. DEFAULT STATUS

“The entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until either its default is set aside or a default judgment is entered.” (*Devlin v. Kearny Mesa AMC/Jeep/Renault*,